

Maharashtra State Electricity Distribution Co. Ltd.

Tender Details		19-05-2026 12:38:42
Tender Code	CE-SPD/ ADB/ 2026-27/ T-13 VERSION- 2	
Tender Type	Works Tender	
Type Of Bid	Two Bid	
Description	Development of Distribution Infrastructure & System Strengthening works at Nagpur Zone of MSEDCL, Maharashtra under Power Distribution Enhancement Program funded by Asian Development Bank (ADB)	
Estimated Cost (In Lakhs)	52546.85	
Basis of prices	NA	
Tender Validity	NA	
Delivery Requirement (In Months)	NA	
Tender on rate contract basis	NO	
Tender Fee (In INR)	25000	
GST In INR (@18% on Tender Fee: SAC No.	4500	
Total Tender Fee Amount including GST in INR.	29500	
Contact	M S Gawali , 9152303162 ,cespd.msedcl@gmail.com	
Pre-Qualifying Req	As per Bid Document	
Budget Type	Capex	
Scheme Code	0133 - Distribution Infra & stym Strengthening	
Scheme Name	0000	
Department	Special Project	
Office Type	HO	
Location Type	Corporate Office	
Designation	Executive Engineer(Distribution)	
Pre-Bid Meeting Address	Office of the Chief Engineer (Special Projects) MSEDCL, Prakashgarh, 5th Floor, Anant Kanekar Marg, Bandra(E), Mumbai- 400051, Maharashtra, India	
Bid Opening Address	Office of the Chief Engineer (Special Projects) MSEDCL, Prakashgarh, 5th Floor, Anant Kanekar Marg, Bandra(E), Mumbai- 400051, Maharashtra, India	
Version No	2	
Call for Deviation	NO	
Is Annexure C1 Applicable	NA	
Is Manufacturer Applicable	NO	
Is Trader Applicable	NO	
Minimum % of Offered Quantity	NA	
Is Power Supplier Applicable	NO	
Tender Sale Start Date	19-05-2026 13:00	

Tender Sale End Date	09-06-2026 14:00
Bid Start Date	19-05-2026 14:00
Bid End Date	09-06-2026 15:00
Pre-Bid Meeting Date	26-05-2026 15:00
Techno-Commercial Bid opening on	09-06-2026 16:00
Price Bid opening on	Will be declared later
Annexure C1 Opening Date	NA
Winner Selection Date	Will be declared later
Can Bidder Opt EMD Exemption	N

STANDARD BIDDING DOCUMENT

FOR

Full Turnkey Contract

(Design, Supply and Installation)

[MAHARASHTRA STATE ELECTRICITY DISTRIBUTION
COMPANY LIMITED]

Request for Bids

FOR

**Development of Distribution Infrastructure for System Strengthening
Works at Nagpur Zone of MSEDCL, Maharashtra under Power
Distribution Enhancement Program funded by Asian Development Bank
(ADB).**

Key Dates

Date of Release of RFB/ NIT	<i>19/05/2026</i>
Date of Pre-Bid Meeting	<i>26/05/2026 at 15:00 Hours (Noon) (IST)]</i>
Deadline for Submission of Bid	<i>09/06/2026 up to 15:00 Hours (IST)]</i>
Date & Time of Opening of Technical Part of Bid	<i>09/06/2026 at 16:00 Hours (IST)]</i>

Regd. Office: Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051]

Tele. 022-26474211 Extn. 2241

CIN:- U40109MH2005SGC153645

Website: www.mahadiscom.in , Email: cespd.msdel@gmail.com

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

SUMMARY

PART I – BIDDING PROCEDURES AND REQUIREMENTS

Section 1: Request for Bids Notice /Notice Inviting Tender

This Section includes Request for Bids (RFB)/ Notice Inviting Tender (NIT)

Section 2: Eligibility and Qualification Requirements

This Section contains information regarding specific eligibility and qualification requirements applicable for prospective bidders to be considered for further evaluation of their bids.

Section 3: Instructions to Bidders (ITB) and Bid Data Sheet (BDS)

This Section consists of two parts: “Instructions to Bidders” and “Bid Data Sheet (BDS)”. “Bid Data Sheet” contains information specific to procurement that corresponds to and/or supplements and/or modifies “Instructions to Bidders”. This Section provides information to help prospective bidders prepare their bids. Information is also provided on the bidding process - **Single Stage Two-Envelope Bidding Process with e-Procurement**, submission, opening, and evaluation of bids, selection of successful bidder and on the award of contract.

Section 4: Bidding Forms - Technical Part of the Bid

This Section includes the forms for Technical Part of the bids that are to be completed by the Bidders and submitted in accordance with the requirements of Section 3.

Section 5: Bidding Forms - Financial Part of the Bid

This Section includes the forms for Financial Part of the bid including Price Schedules that are to be completed the Bidders and submitted in accordance with the requirements of Section 3.

PART 2 – EMPLOYER’S REQUIREMENTS

Section 6: Employer’s Requirements

This Section specifies the Scope of Work, Specification, the Drawings, and supplementary information that describe the Plant and Installation Services to be procured.

PART 3 – CONDITIONS OF CONTRACT AND CONTRACT FORMS

Section 7: Conditions of Contract

This Section consists of two parts: General Conditions of Contract (GCC) and Special Conditions of Contract (SCC). GCC includes general clauses to be applicable to the Contract and the contents of SCC modify or supplement GCC.

Section 8 - Contract Forms

This Section contains the Letter of Acceptance/ Notification of Award, forms which, once completed, will form part of the Contract. The forms for Performance Security and Advance Payment Security, when required, shall only be completed by the successful Bidder after contract award.

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PART 1

BIDDING PROCEDURES AND REQUIREMENTS

Section - 1 : Request for Bids Notice/Notice Inviting Tender

MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED

NATIONAL OPEN COMPETITIVE PROCUREMENT

Request for Bids (RFB)/ Notice Inviting Tender (NIT) (Single Stage Two-Envelope Bidding Process with e-Procurement)

Contract title: Development of Distribution Infrastructure & System Strengthening works at Nagpur Zone of MSEDCL, Maharashtra under Power Distribution Enhancement Program funded by Asian Development Bank (ADB) Turnkey e-tenders are invited for supply, test, transport, construction, erection, testing and commissioning of New Substations, Augmentation of Substations, Additional Power Transformers, HT Lines and other allied works, including supply & works guarantee as per standard bidding documents on single point responsibility, indivisible “Turnkey” contract basis in **Nagpur Zone of MAHARASHTRA STATE**.

NIT/RFB No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

Issued on: [19/05/2026]

1. MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED (hereinafter also referred to as the **Employer** or the **Utility**) invites online Bids for Development of Distribution Infrastructure & System Strengthening works at **Nagpur** Zone of MSEDCL, Maharashtra under Power Distribution Enhancement Program funded by Asian Development Bank (ADB). Bidders are advised to note the clauses on eligibility and qualification requirements in Section 2, to be eligible and qualify for being considered for the award of the contract.
2. Bidding will be conducted through national open competitive e-procurement.
3. The RFB document (hereinafter also referred to as bidding document) is available online, for downloading on www.mahadiscom.in from 19/05/2026 to 09/06/2026 (up to 15:00 Hrs). The bidder would be responsible for ensuring that any addenda/ corrigendum/ amendment etc. available on the website/ portal is also downloaded and incorporated.
4. The bidding shall be conducted **under Single Stage Two-Envelope Bidding process with e-Procurement** as specified in Section 3.
5. Under the Single Stage Two-Envelope Bidding process, the Bidder shall not quote, disclose or submit its price in the Technical Part (First Envelope) of its bid or in any other manner, whatsoever, except as part of the Financial Part (Second Envelope) of its bid. In case of any non-compliance in this regard, the bids shall be out-rightly / summarily rejected.

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

6. An incomplete and/or ambiguous and/or conditional bid and/or bid submitted late is liable to be ignored/ summarily rejected.
7. Bid must be submitted online through the e-Procurement/ e-Tendering process specified in Section 3. Any bid or modifications to bid received outside the e-Procurement system will not be considered, unless otherwise specified in Section 3. The Utility shall not be held liable for any delays due to e-Procurement/ e-Tendering system failure beyond its control. Even though the system will attempt to notify the bidders of any bid updates, The Utility shall not be liable for any information not received by the bidder. It is the bidders' responsibility to verify the website for the latest information related to this RFB.
8. Salient details pertaining to this RFB Notice including submission and opening of bid, bid security, cost of documents/ tender fee, if any, for downloading the bidding document, address for communication, etc., are given in the TABLE below.
9. If the Utility office happens to be closed on the specified date of opening of the bids, the bids will be opened on the next working day at the same time and venue or as may be notified by the Utility.
10. Other details can be seen in the RFB document.

TABLE

RFB Notice/ NIT No.	CE-SPD/ADB/ 2026-27/T-13
Contract Title for the Procurement	Turnkey e-tenders are invited for supply, test, transport, construction, erection, testing and commissioning of New Substations / Additional Power Transformers, Distribution transformer (New / Aug.), HT Lines and other allied works, including works guarantee as per standard bidding documents under the on single point responsibility, indivisible “Turnkey” contract basis in System Strengthening works at Nagpur Zone OF MAHARASHTRA
Brief description of Scope of Works	The scope of work under the subject package includes site survey, planning, design, engineering, assembly manufacturing, testing, supply, loading, transportation, unloading, insurance, delivery at site, handling, storage, installation, testing, commissioning and documentation of all items/material required to complete the works of System Strengthening works New Substations, New 33 kV Lines, New 22 KV Lines, New 11 kV Lines, Augmentation of Power TR. / Sub-station and 33 kV, 22kV, 11kV line, Renovation works, Distribution transformer (New / Aug.) LT Line, HT/LT Under-ground cabling works. GIS Mapping and Asset Tagging And any other allied work at Nagpur Zone of MAHARASHTRA STATE
Mode of Procurement/Bidding	Singe Stage Two-Envelope Bidding Process with e-Procurement/ e-Tendering (option of composite package /sub package)
Date of Release of RFB Notice/ NIT	19/05/2026
Date & Time of Pre-Bid Meeting	26/05/2026 @ 15:00 Hrs (Noon) (IST)]
Last date of Bid Submission	09/06/2026 up to 15:00 Hours (IST)]
Date of Opening of Technical Part (First Envelope) of the bid	09/06/2026 at 16:00 Hours (IST)]
Opening of Financial Part (Second Envelope) of the Bid	To be notified later. Financial Part of bids from only those bidders shall be opened who, upon evaluation of Technical Part of the bids, are found eligible and qualified, and whose bids are found responsive to bidding documents.

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

Location of Submission/ Opening of Bids, as applicable	Maharashtra State Electricity Distribution Company Limited, Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051
Type of Procurement	Plant (Design, Supply and Installation)
EMD/ Bid Security	All bids must be accompanied by a bid security of amount 2% of tender value or Rs 5 (five) crore, whichever is lower. MSEDCL Bank Account No. required for submitting Bank Guarantee Beneficiary Name: MSEDCL Name of Bank- Bank of Maharashtra Bank Branch- FORT, Mumbai. Bank Account NO.: 20045003931 IFSC Code- MAHB0000002 <i>Bid Securing Declaration to be submitted as specified in Section I and 3.</i>
Performance Security	The Performance Security amount is 3% of Contract Price
Bid Validity period	The bid validity period will be [180] days from date of Opening of Technical Part of the Bid.
Time for Completion	The Time for Completion of the works is: Twenty-Four Months from the Effective Date of the Contract
Address for Correspondence	<u>[(Mr. Manik Gavali, Executive Engineer, Special Project Section Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051</u> <u>(Mobile no 9152303162)</u>
Contact Details of E- Procurement Portal Support Team:	<u>[(Mr. Manik Gavali, Executive Engineer, Special Project Section Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051</u> <u>(Mobile no 9152303162)</u>

Section – 2 : Eligibility and Qualification Requirements

1. Eligibility Requirements:

Technical Part of the Bid shall be evaluated, inter-alia, as per **Section 3** on the basis of their responsiveness to and Bidder's compliance with the Eligibility Requirements specified herein below:

- 1.1. Only firm that is a private entity, a state-owned entity or an institution, legally established in India to undertake design, supply and installation of the works mentioned in the scope of works under this RFB Document/ bidding document are eligible to bid (submit their Bid in response to RFB Notice/ NIT). The Bidder (alternatively referred to as the Contractor/Bidder) may be a proprietorship concern or a partnership firm operating in India, or a registered entity in India under the Companies Act, 1956, 2013 or LLP Act.
- 1.2. Any combination of such entities eligible as per 1.1 above, is also eligible to bid in the form of a joint venture (JV) as defined in **Section 3**, under an existing agreement. In the case of a joint venture, the number of members of the JV shall not exceed 03 (three) and all members shall be jointly and severally liable for the execution of the entire Contract in accordance with the Contract terms. The JV shall nominate a Representative who shall have the authority to conduct all business for and on behalf of any and all the members of the JV during the Bidding process and, in the event the JV is awarded the Contract, during contract execution. In case of JV, the bidding JV (also referred to as the Bidder) shall submit a Joint Deed of Undertaking in Technical Part of its bid, as per the format enclosed in **Section 4** of the RFB/ bidding document. No change in the structure / constitution of the JV shall be permitted at any stage during bidding or execution of the Contract in the event of award.

- 1.3. As an exception to the foregoing Clause 1.1 & 1.2 above:

Sanctions: Firms, which includes individual or any of the JV members in case of bidding Joint Venture as per Clause 1. 2 above, blacklisted by the Employer/ CPSEs or any of their subsidiaries / Government of India/ Government of Maharashtra / any Regulatory Authority, as on the date of submission of Bid, are not eligible to bid.

- a. **Suspension:** Firm which includes individual or any of the JV members in case of bidding Joint Venture as per Clause 1. 2 above, under suspension by the Employer as the result of the operation of a Bid-Securing Declaration or Proposal-Securing Declaration, shall not be eligible to bid.
- b. **Prohibitions:** Firms, which includes individual or any of the JV members in case of bidding Joint Venture as per Clause 1. 2 above and individuals of a country or goods / works / services manufactured/ produced in a country shall be ineligible, if as a matter of law or official regulations, the Government of India prohibits commercial relations with that country.

- 1.4. To be eligible to bid, the Bidders must ensure compliance to the following, failing which they shall not be eligible:

I. Any bidder from a country which shares a land border with India will be eligible to bid only if the bidder is registered with the Competent Authority.

II. "Bidder" (Seller / Service Provider) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.

2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;

3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;

4. Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;

5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

V. An Agent is a person employed to do any act for another, or to represent another in dealings with third person.

VI. The successful bidder shall not be allowed to sub-contract works to any Contractor/Bidder from a country which shares a land border with India unless such Contractor/Bidder is registered with the Competent Authority.

- 1.5. Bidding is open to all and local Bidders will be required to demonstrate that they meet the Local Content requirements below. Eligible 'Class -I local supplier' are required to demonstrate the following:

- (i) The latest Public Procurement (Preference to Make in India) Order issued by Department for promotion of Industry and Internal Trade (DPIIT), Ministry of Commerce and Industry, Government of India,
- (ii) #‘Public Procurement (Preference to Make in India) to provide for Purchase Preference (linked with local content) in respect of Power Sector’ order dated 28/07/2020 issued by Ministry of Power (MoP Order)

Or

Public Procurement (Preference to Make in India) Order, 2017- Notification of Telecom products, Services or Works issued by Department of Telecommunications (DoT), Ministry of Communications, Government of India, vide Notification dated 29.08.2018 (DoT Order)

Or

and any subsequent modifications/Amendments, if any.

As per the aforesaid orders:

‘Class –I local supplier’ means a supplier or service provider, whose goods, services or works offered for procurement, meets the minimum local content as prescribed for ‘Class-I local supplier’. Presently, the local content requirement to categorize a supplier as ‘Class-I local supplier’ is minimum 50%*.

Further, for the purpose of purchase preference under the PPP-MII Order:

‘Local Content’ means the amount of value added in India which shall be the total value of the item procured (excluding net domestic indirect taxes) minus the value of imported content in the item (including all customs duties) as a proportion of the total value, in percent.

The [‘Class –I local supplier shall give a self-certification in is Technical part of the Bid in the format given in **Section 4** of RFB document, indicating the percentage of Local Content and certifying that the item offered meets the Local Content requirement for ‘Class –I local supplier’, as the case may be, and shall give details of the location(s) at which value addition is made. Further, in case of procurement above Rs. 10 Crore, the ‘Class –I local supplier shall provide a certificate from statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of Local Content. False declaration regarding Local Content by the bidder shall be a transgression of Integrity Pact, if applicable, and as per clause ITB 2 of Section, RFB document, and action shall be taken in accordance therewith and in line with the provisions of the above Orders. Further, in case of price reduction during e-Reverse Auction, if envisaged as per Section 3 of RFB document, or for any other reason including matching L1 price pursuant to the purchase preference extended, the revised prices shall be so as to ensure that classification of the bidder ‘Class –I local supplier’ remains unchanged.

1.6. Employer reserves the right to request for any additional information and also reserves the right to reject the Proposal of any Bidder, if in the opinion of Employer, the qualification data is incomplete or the Bidder is found not qualified to satisfactorily perform the Contract.

1.7. The bidder/JV should provide detailed information on any litigation either in the court of law and / or arbitral panel. The information shall be certified by Chartered Accountant & shall be submitted by Bidder along with submission of technical bid.

All pending litigations shall in total not be more than fifty percent (50%) of the bidder's net worth.

In case amount is more than 50% of the bidder's net worth, bidder shall be disqualified.

*Litigation means it includes litigation filed against the bidder & litigation filled by the bidder;

OR

If any type of legal litigation against MSEDCL is pending in any court/ Forum against/by the bidder or its sister Concern/ Director/ Partner/ Proprietor, then MSEDCL reserves the right to reject partly or fully their bid without assigning any reasons thereof.

1.8. For the purposes of these Bidding Documents, the words “facilities,” “plant and equipment,” “installation services,” etc., shall be construed in accordance with the respective definitions given to them in the General Conditions of Contract.

2. Qualification Requirements

2.1. Technical:

2.1.1. For the purpose of this particular bid, bidder shall meet the following minimum criteria in past 7 years up to 31/03/2026.:

i. Experience in similar work (as per clause 2.1.3 mentioned below) under **single** contract, costing not less than 70% of the tender cost excluding GST.
The costing of the works under the above contract should be of completed works only under the contract.

Or

ii. Experience in similar works (as per clause 2.1.3 mentioned below) under two **contracts**, each costing not less than **40% of the tender cost excluding GST**.
The costing of the works under the above contract should be of completed works only under the contract.

Or

iii. Experience in similar works (as per clause 2.1.3 mentioned below) under three **contracts**, each costing not less than **30% of the tender cost** excluding GST.-The costing of the works under the above contract should be of completed works only under the contract.

2.1.2 Collectively the JV partner should meet the criteria mentioned in 2.1.1 above. However, each JV partner should have completed at least one contract costing not less than **30% of the tender cost** excluding GST.

For illustration, the various cases possible, along with the number of contracts and the minimum amounts for each of scenarios are shown below:

Case 1: JV of two (2) partners

Scenario		Partner 1	Partner 2
1. Any One partner fully meets the qualification requirements	A)	1 contract of minimum 70% of the cost	1 contract of minimum 30% of the cost
	B)	2 contracts, each of minimum 40% of the cost	1 contract of minimum 30% of the cost
	C)	3 contracts, each of minimum 30% each of the cost	1 contract of minimum 30% of the cost
2. Both partners put together meet the qualification requirements	A)	1 contract of minimum 40% of the cost	1 contract of minimum 40% of the cost
	B)	2 contracts of minimum 30% of the cost	1 contract of minimum 30% of the cost

Case 2: JV of three (3) partners

Scenario		Partner 1	Partner 2	Partner 3
1. Any One partner fully meets the qualification requirements	A)	1 contract of minimum 70% of the cost	1 contract of minimum 30% of the cost	1 contract of minimum 30% of the cost
	B)	2 contracts, each of minimum 40% of the cost	1 contract of minimum 30% of the cost	1 contract of minimum 30% of the cost
	C)	3 contracts, each of minimum 30% each of the cost	1 contract of minimum 30% of the cost	1 contract of minimum 30% of the cost
2. All partners put together meet the qualification requirements	A)	1 contract of minimum 40% of the cost	1 contract of minimum 40% of the cost	1 contract of minimum 30% of the cost
	B)	1 contract of minimum 30% of the cost	1 contract of minimum 30% of the cost	1 contract of minimum 30% of the cost

2.1.3 For the purposes of satisfaction of Technical Requirement, similar works refers to:

- a) Project(s) execution in one or more sectors below :-
 - 1) Electrical Transmission sector
 - 2) Sub-transmission sector
 - 3) Electrical distribution sector

In above sectors, type of construction works undertaken should be of the nature of one or more of the following:-

- 1) EHT lines
- 2) HT lines
- 3) LT lines
- 4) Distribution transformers
- 5) Substations

- b) Notwithstanding the clause 2.1.3(a) above, experience in only LT lines would not be considered eligible.

The experience of the bidder as part of Joint venture or consortium or a sub-Contractor / Bidder will be considered for the purpose of evaluation as per the clause 2.1.1, 2.1.2 and 2.1.3 above only in case where the bidder is able to provide approval / acceptance of the mentioned works from the end-customer or the utility whichever is applicable.

2.2. Financial/ Commercial:

2.2.1. The Net Worth of the bidder must be positive for the each of the last three Financial Years. Net worth means the sum total of the paid-up capital and free reserves (excluding reserves created out of revaluation) reduced by aggregate value of accumulated losses (including debit balance in profit and loss account for current year) and intangible assets.

2.2.2. Minimum Average Annual Turnover (MAAT) of the Bidder for best three years out of last five financial years of the bidder should not be less **than** 30% of estimated tender cost.

2.2.3. Bidder must have liquid assets (LA) and/ or evidence of access to or availability of fund based credit facilities of not less than 10% of estimated tender cost and the Banker should confirm that the Credit facility is earmarked for the Works specified under Bid on receipt of the Bid. Liquid Assets would include unencumbered cash (and equivalents), bank deposits with maturity less than 365 days, securities that can be freely traded or maturity less than 365 days and receivables which has general certainty of getting received minus payables which has general certainty of getting paid.

2.2.4. In case a bid is submitted by a Joint Venture (JV), all the partners of the JV shall meet, individually, the qualification set forth at para 2.2.1 above and collectively the requirement of para 2.2.2 & 2.2.3 above. The figures for each of the partner of the joint venture shall be added together to determine the bidder's compliance with the minimum qualifying criteria set out in para 2.2.2 & 2.2.3 above; however, in order for a joint venture to qualify, the partner(s) of joint venture must meet the following minimum criteria:

At least one partner shall meet, not less than 40% of the minimum criteria given at Para 2.2.2 & 2.2.3 above.

AND

2.2.4.1. Each of the other partner(s) shall meet not less than 25% of the criteria given at Para 2.2.2 & 2.2.3 above.

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2.2.5. Failure to comply with requirement mentioned in 2.2.4 will result in rejection of the Joint Venture's bid.

2.2.6. The lead partner shall be authorized to incur liabilities and receive instruction for and on behalf of any and all partners of the joint venture and the entire execution of the contract including receipt of payment shall be done exclusively through the lead partner. This authorization shall be evidenced by submitting in Technical Part of its bid, a power of attorney signed by legally authorized signatories of all the partners as per pro-forma in Section 4 of the RFB/ bidding documents

2.2.7. All partners of the joint venture shall be liable jointly and severally for the execution of the contract in accordance with the contract terms and a copy of the agreement entered into by the Joint Venture partners having such a provision shall be submitted with the Technical Part of the bid. A statement to this effect shall be included in the authorization mentioned under para 2.2.6 above as well as in the Bid Form and in the Contract Form (in case of a successful bid);

2.2.8. The Bidder shall also furnish following documents/details with Technical Part of its bid:

2.2.8.1. A certificate from banker (as per specified format) indicating various fund-based limits sanctioned to the bidder and the extent of utilization as on date. Such certificate should have been issued not earlier than three months prior to the date of bid opening. Wherever necessary, the employer may make queries with the Bidders' bankers.

2.2.8.2. The complete annual reports together with Audited statement of accounts of the company for last five years of its own (separate) immediately preceding the date of submission of bid. In case audited statements of the last financial year are not available the audited statements of the preceding five years can be submitted.

2.2.8.3. Note:

2.2.8.3.1. In the event the bidder is not able to furnish the information of its own (i.e. separate), being a subsidiary company and its accounts are being consolidated with its group/holding/parent company, the bidder should submit the audited balance sheets, income statements, other information pertaining to it only (not of its group/Holding/Parent Company) duly certified by any one of the authority [(i) Statutory Auditor of the bidder /(ii) Company Secretary of the bidder or (iii) A certified Public Accountant] certifying that such information/documents are based on the audited accounts as the case may be.

2.2.8.3.2. Similarly, if the bidder happens to be a Group/Holding/Parent Company, the bidder should submit the above documents/information of its own (i.e. exclusive of its subsidiaries) duly certified by any one of the authority

mentioned in Note - 2.2.8. 3.1 above certifying that these information/ documents are based on the audited accounts, as the case may be.

2.2.8.4. Subcontractors' technical experience and financial resources shall not be taken into account in determining the Bidder's compliance with the qualifying criteria.

2.2.8.5. Work experiences of the bidder as per above shall be considered only if the works have been executed under Govt./Semi-Govt./autonomous body of Central/State Govt./Electricity Power Utility/ Power Deptt. in India only.

2.2.8.6. The bidder should possess the necessary license as applicable for the execution of works in this RFB.

However, in case the bidder does not hold the license for the given State, then the bidder should possess the equivalent license for any one State in India and post-award the bidder is required to acquire the necessary license for the given State within a period of two months.

In case bid is submitted by Joint Venture, all partners whose scope as per the delineation of responsibilities amongst JV partners includes execution of Works or part thereof at Site, should possess and/or acquire the necessary license as stated above.

Section - 3: Instructions to Bidders and Bid Data Sheet

A. Instructions to Bidders General

- 1.1 In connection with the Notice Inviting Tenders (NIT)/ Request for Bids (RFB) Notice specified in **Bid Data Sheet**, the Employer (named in the **Bid Data Sheet**) issues this RFB/ Bidding Document for the Design, Supply and Installation of Plant (also referred to as the Scope of Work), as specified in **Section 6**, Employer's Requirement. The name and identification of the package for award of contract under his NIT/RFB is specified in **Bid Data Sheet**.
- 1.2 Throughout this bidding document:
 - (a) **"Affiliate(s)"** means an individual or an entity that directly or indirectly controls, is controlled by, or is under common control with the Bidder.
 - (b) **"Applicable Law"** means the laws and any other instruments having the force of law in India, as may be issued and in force from time to time.
 - (c) **"Employer"/ "Utility"** means the entity, as briefly described in **Bid Data Sheet**, that has issued the Request for Bids for award of the Contract for the Design, Supply and Installation of Plant (also referred to as the Scope of Work), as specified in **Section 6**, Employer's Requirement.
 - (d) **"Bid"** means the Technical Part (first Envelope) and the Financial Part (Second Envelope) of its bid submitted by the Bidder who participates in the bidding in response to Notice Inviting Tenders (NIT)/ Request for Bids (RFB) Notice. It is alternatively also referred to as the tender.
 - (e) **"Bid Data Sheet (BDS)"** means an integral part of the **Instructions to Bidders (ITB) Section 3**, that is used to reflect issues, details and conditions specific to the procurement, to supplement and/or modify the provisions of ITB.
 - (f) **"Bidder"** means a legally-established professional firm or an entity that may submit its Bid to the Employer in response to the RFB Notice/ NIT issued by the Employer, to provide/ provision the Plant to the Employer.
 - (g) **"Contract"** means a legally binding written instrument entered between the Employer/ Utility and the successful Bidder, in the manner and in accordance with the RFB document/ bidding documents, for the Design, Supply and Installation of Plant (also referred to as the Scope of Work), and includes the Letter of Acceptance/ Notification of Award, the Contract Agreement, the General Conditions of Contract (GCC), the Special Conditions of Contract (SCC), and the Appendices and the documents attached thereto.
 - (h) **"Day"** means a calendar day, unless otherwise specified as **"Business Day"**. A Business Day is any day that is an official working day of Employer. It excludes Employer's official public holidays.
 - (i) **"Government"** means the government of India, State Government or Local Government as applicable.

- (j) **“In writing”** means communicated in written form (e.g. by mail, e-mail, fax, including that distributed or received through the electronic-procurement system used by Employer).
- (k) **“Plant”, “Installation Services”, “Facilities” (also referred hereinafter as “Works”)** used herein shall have the same meaning as ascribed to them in **Section 7**.
- (l) **“ITB”** (this **Section 3** of the RFB/ Bidding Documents) means the Instructions to Bidders that, along with other Sections, provides the Bidders with all information needed to prepare and submit their Bids.
- (m) **“Joint Venture (JV)”** means an association with or without a legal personality distinct from that of its members, of more than one entity/ firm where one member has the authority to conduct all business for and on behalf of any and all the members of the JV, and where the members of the JV are jointly and severally liable to Employer for the performance of the Contract. Whether or not bidding by Joint Venture is permitted, is specified in **BDS** and in **Section 2**.
- (n) **“RFB”** means the Request for Bids issued by Employer for the selection of the successful Bidder from amongst the bids submitted by bidders(s) who bid against and in response to the Request for Bids Notice (alternatively referred to as **Notice Inviting Tenders (NIT)**) under Two Envelope Single Stage Bidding Process.
- (o) **“Sub-contractor”** means an entity to whom the Contractor subcontracts any part of the Works as per the applicable provisions of the Contract while the Contractor remains responsible to Employer for the whole and successful performance of the Contract.
- (p) Capitalised terms used herein but not defined specifically shall have the meaning as ascribed to them in Section 5 and Section 6, and elsewhere in RFB/bidding Document.
- (q) If the context so requires, “singular” means “plural” and vice versa.
- (r) **“TPQMA”** means a “Third Party Quality Monitoring Agency” that the Nodal Agency engages to carry out Pre Dispatch inspection of materials at manufacturing facilities of Contractor or Sub Contractor / Sub-Vendors of the Contractor and to carry out the inspection in the field of the works carried out.

2- Fraud and Corruption

- a. The Employer requires compliance with the Anti-Corruption Guidelines/ Laws in force of the relevant Government/ its instrumentalities/ Utility.
 - 1. requires that bidders (applicants/proposers), consultants, contractors and suppliers; any sub-contractors, sub-consultants, service providers or suppliers; any agents (whether declared or not); and any of their personnel, observe the highest standard of ethics during the procurement process, selection and contract execution, and refrain from Fraud and Corruption.
 - 2. To this end, MSEDCL: Defines, for the purposes of this provision, the terms set forth below

as follows:

- (a) “Corrupt practice” is the offering, giving, receiving, or soliciting, directly or indirectly, of anything of value to influence improperly the actions of another party;
- (b) “Fraudulent practice” is any act or omission, including misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain financial or other benefit or to avoid an obligation;
- (c) “Collusive practice” is an arrangement between two or more parties designed to achieve an improper purpose, including to influence improperly the actions of another party;
- (d) “Coercive practice” is impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party;
- (e) “Obstructive practice” is deliberately destroying, falsifying, altering, or concealing of evidence material to the investigation or making false statements to investigators in order to materially impede investigation into allegations of a corrupt, fraudulent, coercive, or collusive practice; and/or threatening, harassing, or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; or
- (f) Rejects a proposal for award if the MSEDCL determines that the firm or individual recommended for award, any of its personnel, or its agents, or its sub-consultants, sub-contractors, service providers, suppliers and/ or their employees, has, directly or indirectly, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices in competing for the contract in question;
- (g) In addition to the legal remedies set out in the relevant Legal Agreement, may take other appropriate actions,
- (h) Pursuant to the Anti- Corruption Laws/ Guidelines and in accordance with due process, MSEDCL, may sanction a firm or individual, either indefinitely or for a stated period of time, including by publicly declaring such firm or individual ineligible (i) to be awarded or otherwise benefit from contract awarded by MSEDCL or its subsidiaries/ affiliates, financially or in any other manner; (ii) to be a nominated sub-contractor, consultant, manufacturer or supplier, or service provider of an otherwise eligible firm being awarded a contract MSEDCL or its subsidiaries/ affiliates; and (iii) to receive the proceeds of any loan made by the REC or otherwise to participate further in the preparation or implementation of any REC-financed project.

3. Any occurrence, or suspected occurrence, of a Prohibited Practice in the procurement, award, or implementation of a Bank-financed contract is dealt with in accordance with the provisions of the Bank’s Policy on Prohibited Practices. Suppliers, contractors, service providers and consultants selected pursuant to the Bank’s Procurement Instructions for Recipients, as well as the Recipient shall fully cooperate with the Bank (or a cofinancier undertaking an investigation pursuant to the Bank’s Procurement Instructions for Recipients) in any investigation into an alleged Prohibited Practice to be carried out pursuant to the Policy on Prohibited Practices, and permit the Bank or its representative (including such co-financier) to inspect such of their accounts and records as may be relevant for such investigation and to have such records and accounts audited by the auditors appointed by the Bank.

a- Bidders are also required to sign and furnish in the Bid, duly signed Integrity Pact if so specified in **ITB 10.2.8**.

- 3.1 The eligibility and qualification requirements against the RFB are given in **Section 2**, for the Bidders and the Plant/ Installation Services/ Works. Bids, if any, from Bidders and/or offering Plant/ Installation Services/ Works not complying with the same shall be out rightly rejected and shall not be considered for evaluation
- 3.2 Bids submitted by the Bidders shall be evaluated to ascertain their compliance with Eligibility and Qualification Requirements, based on the details/ information/ documentary evidence pertaining to the same to be submitted in the Technical Part, as specified in ITB. All Bidders shall provide in **Section 4**, Bidding Forms, requisite details and documents in support of meeting the Eligibility and Qualification Requirements. A Bid shall be rejected if the Bidder submitting the Bid, fails to meet the Eligibility and Qualification Requirements. Bids submitted by those Bidders who meet the Eligibility and Qualification Requirements shall be shortlisted for further evaluation of their bids.
- 3.3 A Bidder shall provide such additional documentary evidence of eligibility and/or qualification satisfactory to the Employer, as the Employer shall reasonably request.
- 4.1 A Bidder shall not have a conflict of interest. Any Bidder found to have a conflict of interest shall be disqualified. A Bidder may be considered to have a conflict of interest for the purpose of this Bidding process, if the Bidder:
- (a) Directly or indirectly controls, is controlled by or is under common control with another Bidder; or
 - (b) Receives or has received any direct or indirect subsidy from another Bidder; or
 - (c) Has the same legal representative as another Bidder; or
 - (d) Has a relationship with another Bidder, directly or through common third parties, that puts it in a position to influence the Bid of another Bidder, or influence the decisions of the Employer regarding this Bidding process; or
 - (e) Any of its affiliates participated as a consultant in the preparation of the design or technical specifications of the works that are the subject of the Bid; or
 - (f) Any of its affiliates has been hired (or is proposed to be hired) by the Employer for the Contract implementation; or
 - (g) has a close business or family relationship with a professional staff of the Utility (or of the project implementing agency) who: (i) are directly or indirectly involved in the preparation of the bidding document or specifications of the Contract, and/or the Bid evaluation process of such Contract; or (ii) would be involved in the implementation or supervision of such Contract unless the conflict stemming from such relationship has been resolved in a manner acceptable to the Employer throughout the Bidding process and execution of the Contract.
- 4.2 A firm that is a Bidder (either individually or as a JV member) shall not participate as a Bidder or as JV member in more than one Bid under the single tender. Such participation shall result in the disqualification of all Bids under the tender in which the firm is involved.

However, this does not limit the participation of a Bidder as subcontractor in another Bid or of a firm as a subcontractor in more than one Bid.

B. Contents of Bidding Document

- 5.1 The bidding document (also referred to as the RFB document) consist of Parts 1, 2, and 3, which include all the sections indicated below, and should be read in conjunction with any Addenda/ Corrigenda/ Amendments issued in accordance with **ITB 7**.

PART 1 Bidding Procedures and Requirements

- Section 1 - Request for Bids Notice
- Section 2 - Eligibility and Qualification Requirements
- Section 3 - Instructions to Bidders and Bid Data Sheet
- Section 4 - Bidding Forms - Technical Part of the Bid
- Section 5- Bidding Forms - Financial Part of the Bid

PART 2 Employer's Requirements

- Section 6 – Employer's Requirement

PART 3 Conditions of Contract and Contract Forms

- Section 7 - Conditions of Contract
- Section 8 - Contract Forms

- 5.2 The Bidder is expected to examine all instructions, forms, terms, and specifications in the bidding document and to furnish with its Bid, all information or documentation as is required by the RFB/ bidding document.

- 6.1 Electronic- Bidding System (also referred to as e-Procurement or e- Tendering system) as specified in the **BDS** shall be used to manage the bidding process. Only the Bids which are submitted and received through the specified system in conformity with the procedures and requirements specified of **ITB** and **BDS** shall be considered.

- 6.2 The electronic- bidding system specified in the **ITB 6.1** provides for online clarifications. A Bidder requiring any clarification of the bidding document may notify the Employer online or through any other mode if so specified in **BDS**. Clarifications requested through any other mode shall not be considered by the Employer. The Employer will respond to any request for clarification, provided that such request is received prior to the deadline for submission of Bids within a period specified in the **BDS**. Description of clarification sought, and the response of the Employer shall be uploaded for information of all Bidders without identifying the source of request for clarification. Should the clarification result in changes to the essential elements of the bidding document, the Employer shall amend the bidding document following the procedure under **ITB 7** and **ITB 21.2**.

- 6.3 The Bidder is advised to visit and examine the Site where the Plant is to be installed/ Works are to be provided, and its surroundings and obtain for itself on its own responsibility all information that may be necessary for preparing the Bid and entering into a contract for provision of Plant and Installation Services/ construction of the Works. The costs of visiting the Site shall be at the Bidder's own expense.
- 6.4 The Bidder and any of its personnel or agents will be granted permission by the Employer to enter upon its premises and lands for the purpose of such visit, but only upon the express condition that the Bidder, its personnel, and agents will release and indemnify the Employer and its personnel and agents from and against all liability in respect thereof, and will be responsible for death or personal injury, loss of or damage to property, and any other loss, damage, costs, and expenses incurred as a result of the inspection.
- 6.5 If so specified in the **BDS**, the Bidder's designated representative is invited to attend a pre-Bid meeting. The purpose of the meeting will be to clarify issues and to answer questions on any matter that may be raised at that stage.
- 6.6 The Bidder is requested to submit any questions in writing, to reach the Employer not later than one day before the meeting.

Minutes of the pre-Bid meeting, including the text of the questions raised without identifying the source, and the responses given, together with any responses prepared after the meeting, will be notified online through electronic-bidding system. Any modification to the bidding document that may become necessary as a result of the pre-Bid meeting shall be made by the Employer exclusively through the issue of an Addendum pursuant to **ITB 7** and not through the minutes of the pre-Bid meeting. Nonattendance at the pre-Bid meeting will not be a cause for disqualification of a Bidder.

- 7.1 At any time prior to the deadline for submission of Bids, the Employer may amend the bidding document by issuing addenda/ corrigendum/ amendment. The addendum/ corrigendum/ amendment will be in writing and appear on the e-procurement system and through email notification automatically sent to those bidders who have started working on the procurement, or as otherwise specified in **BDS**.
- 7.2 Any addendum/ corrigendum/ amendment issued shall be part of the bidding document and shall be deemed to have been communicated to all the bidders.
- 7.3 To give prospective Bidders reasonable time in which to take an addendum/ corrigendum/ amendment into account in preparing their Bids, the Employer may, at its discretion, extend the deadline for the submission of Bids, pursuant to **ITB 21.2**.

C. Preparation of Bids

- 8.1 The Bidder shall bear all costs associated with the preparation and submission of its Bid, and the Employer shall not be responsible or liable for those costs, regardless of the conduct or outcome of the bidding process.
- 9.1 The Bid, as well as all correspondence and documents relating to the Bid exchanged by the Bidder and the Employer, shall be written in English. Supporting documents and printed literature that are part of the Bid may be in another language provided they are accompanied

by an accurate translation of the relevant passages into English, in which case, for purposes of interpretation of the Bid, such translation shall govern.

10.1 Under the Single Stage Two Envelope bidding process, the Bid shall comprise two Parts, namely the Technical Part and the Financial Part. These two Parts shall be submitted by the Bidder simultaneously.

10.2 The **Technical Part** shall contain the following:

10.2.1 **Letter of Bid - Technical Part:** prepared in accordance with **ITB 11**;

10.2.2 **Bid Security or Bid-Securing Declaration:** in accordance with **ITB 18**, prepared using the relevant form furnished in **Section 4 - Bidding Forms - Technical Part of the Bid**

10.2.3 **Authorization:** Document authorizing the signatory of the Bid to commit the Bidder, in accordance with **ITB 19.3 or ITB 19.4**, as may be applicable, prepared using the bidder's own format;

10.2.4 **Bidder's Eligibility:** documentary evidence in accordance with **ITB 16.1** establishing the Bidder's eligibility to Bid as per the requirements specified in Section 2/ Section 3;

10.2.5 **Qualifications:** documentary evidence in accordance with **ITB 16.2** establishing the Bidder's compliance to the Qualifications Requirements specified in Section 2/ Section 3, along with duly filled in form for compliance of Qualification Requirements, furnished in Section 4 - Bidding Forms - Technical Part of the Bid;

10.2.6 **Eligibility of Goods/ Works/ Plant and Installation Services:** documentary evidence in accordance with **ITB 16.1**, establishing the eligibility of the Works to be supplied by the Bidder;

10.2.7 **Conformity:** Undertaking on Compliance of terms & conditions of the Bidding Documents including Scope of Services and other related requirements, towards documentary evidence in accordance with **ITB 15.1**, prepared using the relevant form furnished in **Section 4 - Bidding Forms - Technical Part of the Bid**; and

10.2.8 any other document if required as per **BDS**.

10.2.9 In addition to the requirements as aforesaid, Bids submitted by a JV shall include a copy of the Joint Venture Agreement entered into by all members, a Joint Deed of Undertaking and Power of Attorney. The Joint Deed of Undertaking and the Power of Attorney shall be prepared using the relevant form furnished in **Section 4 - Bidding Forms - Technical Part of the Bid**

10.3 The **Financial Part** shall contain the following:

10.3.1 **Price Schedules:** completed prepared in accordance with **ITB 11, ITB 13 and ITB 14**;

10.3.2 any other document if required in **BDS**.

- 10.4 The Technical Part shall not include any financial information related to the Bid price. Where material financial information related to the Bid price is contained in the Technical Part the Bid shall be declared non-responsive.
- 11.1 The Letter of Bid – Technical Part shall be prepared using the relevant forms furnished in **Section 4 - Bidding Forms - Technical Part** of the Bid. The priced Schedules for the Plant and Installation Services/ Works, shall be prepared using the relevant forms furnished in **Section 5 - Bidding Forms - Financial Part** of the Bid. The forms must be completed without any alterations to the text, except as provided under **ITB 19.3** for which the bidder can use its own format. All blank spaces shall be filled in with the information requested.
- 11.2 Entire Bid as per **ITB 10** including the Letters of Bid and filled-up priced Schedules for the Plant and Installation Services/ Works, shall be submitted online on e-procurement system specified in **ITB 6.1**. Details and process of online submission of the Bid/ tender and relevant documents are given in **ITB 6.1** and the concerned website referred therein.
- 11.3 **Submission of Original Documents:** The Bidders are also required to separately submit the hard copy of the documents, if any mentioned in BDS, at Employer's address specified in **BDS**, so as to reach the office before the opening of the Technical Part of the Bid, either by registered/speed post/courier or by hand, failing which the bids are liable to be declared non-responsive.
- 11.4 Hard copy of rest of the Bid or any document, other than those specified in **ITB 11.3** are not to be submitted. Employer may, however, seek submission of hard copy of any of the other documents forming part of the Bid or any other supporting/ related document from any of the bidders during the process of evaluation of the Bids, without permitting change in substance of the Bid.
- 12.1 Alternative Bids are not permitted and shall not be considered.
- 13.1 Unless otherwise specified in the **BDS**, Bidders shall quote for the entire Plant and Installation Services on a "single responsibility" basis. The total Bid price shall include all the Contractor's obligations mentioned in or to be reasonably inferred from the bidding document in respect of the design, engineering, manufacture, including procurement and subcontracting (if any), delivery, construction, installation and completion of the Plant. This includes all requirements under the Contractor's responsibilities for testing, pre-commissioning and commissioning of the plant and, where so required by the bidding document, the acquisition of all permits, approvals and licenses, etc.; the operation, maintenance and training services and such other items and services as specified in the bidding document, all in accordance with the requirements of the bidding documents.
- 13.2 Bidders are required to quote the price for the commercial, contractual and technical obligations outlined in the bidding document.
- 13.3 Bidders shall give a breakdown of the prices in the manner and detail called for in the Price Schedules included in **Section 5. Bidding Forms – Financial Part** of the Bid.

13.4 Depending on the Scope of the Work and the Contract, the Price Schedules shall comprise the schedules listed below. Bidders shall note that the plant and equipment included in Schedule Nos. 3 exclude materials used for civil, building and other construction works. All such materials shall be included and priced under Schedule No. 2. The Schedules comprise:

Schedule No. 1: Grand Summary (Schedule Nos.2 and 3)

Schedule No. 2: Civil Cost

Schedule No. 3: Plant & Installation Services

14.1 The prices shall be quoted by the Bidder, and shall be paid for by the Employer, entirely in Indian Rupees.

15.1 To establish the conformity of the Plant and Installation Services/ Works to the bidding document, the Bidder shall furnish as part of its Bid an Undertaking on Compliance of terms & conditions of the Bidding Documents including Scope of Work, conformance of Plant and Installation Services/ Works to the technical specifications and standards specified in **Section 6**, Employer's Requirement as well as other related requirements, in the Technical Part of the bid as specified in **ITB 10.2.7**, as per the format given in **Section 4 - Bidding Forms - Technical Part of the Bid**.

15.2 Wherever and if specified in **Section 6 - Employer's Requirement**, the bidder shall also submit documentary evidence in the form of literature, drawings or data, and a detailed item by item description of the essential technical characteristics of the Plant and Installation Services/ Works, demonstrating substantial responsiveness of the Plant and Installation Services/ Works to the technical specification.

15.3 Wherever and if specified in **Section 6**, Employer's Requirement, the Bidder shall furnish in technical proposal a statement of work methods, equipment, personnel, schedule and any other information as stipulated in **Section 4**, Bidding Forms – Technical Part of the Bid, in sufficient detail to demonstrate the adequacy of the Bidder's proposal to meet the Employer's Requirements and the Time for Completion of the Plant and Installation Services/ Works.

15.4 Standards for workmanship, process, material, and equipment, as well as references to brand names or catalogue numbers specified by the Employer in the Employer's Requirement, are intended to be descriptive only and not restrictive. The Bidder may offer other standards of quality, brand names, and/or catalogue numbers, provided that it demonstrates, to the Employer's satisfaction, that the substitutions ensure substantial equivalence or are superior to those specified in the **Section 6**, Employer's Requirement.

15.5 For major items of Plant and Installation Services if and as listed by the Employer in **Section 2**, Eligibility and Qualification Requirements and **Section 6**, Employer's Requirement, which the Bidder intends to purchase or subcontract, the Bidder shall give details of the name and nationality of the proposed Subcontractors, including manufacturers, for each of those items. In addition, the Bidder shall include in its Bid information establishing compliance with the requirements specified by the Employer for these items. Quoted rates

and prices will be deemed to apply to whichever Subcontractor is appointed, and no adjustment of the rates and prices, on this account, will be permitted.

15.6 The Bidder shall be responsible for ensuring that any Subcontractor proposed complies with the requirements of Section 2 and **Section 6**.

16.1 To establish Bidder's eligibility and eligibility of Plants and Installation Services/ Works in accordance with **ITB 3** and **Section 2**, Eligibility Requirements, Bidders shall complete the Letter of Bid – Technical Part, and other forms included in **Section 4 - Bidding Forms - Technical Part** of the Bid.

16.2 The documentary evidence of the Bidder's eligibility and qualifications, and eligibility of Plant and Installation Services, to be furnished as per Section 4 - Bidding Forms - Technical Part of the Bid, for the Bidder to be considered for award of the Contract, shall establish to the Employer's satisfaction that the Bidder meets each of the Eligibility and Qualification Requirements and establishes eligibility of Plant and Installation Services/ Works, specified in **ITB 3** and **Section 2**.

17.1 Bids shall remain valid until the date specified in the **BDS** or any extended date if amended by the Employer in accordance with **ITB 7**. The Bid Validity period starts from the Bid submission deadline (as prescribed by the Employer in accordance with **ITB 21.1**). A Bid that is not valid until the date specified in the **BDS**, or any extended date if amended by the Employer in accordance with **ITB 7**, shall be rejected by the Employer as nonresponsive.

17.2 In exceptional circumstances, prior to the expiry of the Bid validity, the Employer may request Bidders to extend the period of validity of their Bids. The request and the responses shall be made in writing. If a Bid Security is requested (in accordance with **ITB 18**), it shall also be extended for a corresponding period. A Bidder may refuse the request without forfeiting its Bid Security. A Bidder granting the request shall not be required or permitted to modify its Bid, except as provided in this **ITB 17.2**.

18.1 Unless otherwise the provision for submission of Bid Securing Declaration is specified in the **BDS**, the Bidder shall furnish as part of the Technical part of its Bid, a Bid security in original form, and in the amount specified in the **BDS**.

18.2 If a Bid Security is specified pursuant to **ITB 18.1**, the Bid Security shall be a demand guarantee, and in any of the following forms at the Bidder's option:

- (a) an unconditional guarantee (eBG only) issued by a nationalized/ scheduled commercial bank located in India;
- (b) a cashier's or certified cheque or demand draft from a Nationalized/ Scheduled commercial bank located in India; or
- (c) Another form security, if specified in the **BDS**.

In the case of a bank guarantee, the Bid security shall be submitted using the Bid Security Form included in Section 4, Bidding Forms - Technical Part of the Bid. The form must

- include the complete name of the Bidder. The Bid Security shall be valid for ninety (90) days beyond the original validity period of the Bid, or beyond any period of extension if requested under **ITB 17.2**.
- 18.3 If a Bid Security is specified pursuant to **ITB 18.1**, any Bid not accompanied by a substantially responsive Bid Security shall be rejected by the Employer as non-responsive.
- 18.4 If a Bid Security is specified pursuant to **ITB 18.1**, the Bid Security of unsuccessful Bidders shall be returned as promptly as possible upon the successful bidder's signing the contract and furnishing the Performance Security pursuant to **ITB 43** and **ITB 45**.
- 18.5 The Bid Security of the successful bidder shall be returned as promptly as possible once the successful bidder has signed the Contract and furnished the required Performance Security.
- 18.6 The Bid Security may be forfeited or action may be taken as per the Bid Securing Declaration:
- (a) if a Bidder withdraws/modifies/substitutes its Bid during the period of Bid validity specified by the Bidder in the Letter of Bid - Technical Part, or any extension thereto provided by the Bidder; or if the Bidder does not accept the correction of its Bid Price pursuant to **ITB 33**; or
 - (b) if the successful Bidder fails to:
 - (i) sign the Contract in accordance with **ITB 43**; or
 - (ii) Furnish a performance security in accordance with **ITB 44**.
- 18.7 The Bid Security or the Bid-Securing Declaration of a JV shall be in the name of the JV that submits the Bid.
- 18.8 If a Bid Security is not specified pursuant to **ITB 18.1** and Bid Securing Declaration is specified: and
- (a) if a Bidder withdraws its Bid during the period of Bid validity specified by the Bidder on the Letter of Bid Form, except as provided in **ITB 17.2**; or
 - (b) if the successful Bidder fails to:
 - (i) sign the Contract in accordance with **ITB 43**; or
 - (ii) furnish a Performance Security in accordance with **ITB 44**;
- the Employer may, declare the Bidder disqualified to be awarded a contract by the Employer for a period of time as stated in the **BDS**.
- 19.1 The Bidder shall prepare the Bid, in accordance with **ITB 10**.
- 19.2 Bidders shall mark as "CONFIDENTIAL" information in their Bids which is confidential to their business. This may include proprietary information, trade secrets, or commercial or financially sensitive information.
- 19.3 The Bid shall be signed by a person or persons duly authorized to sign on behalf of the Bidder. This authorization shall be in the form of the document as specified in **BDS** and shall be submitted/ uploaded along with the Bid as per **ITB 11**.

- 19.4 In the case that the Bidder is a JV, the Bid shall be signed by an authorized representative of the JV on behalf of the JV, and so as to be legally binding on all the members as evidenced by a power of attorney signed by their legally authorized representatives, which shall be submitted/ uploaded along with the Bid as per **ITB 11**.
- 19.5 Corrections, if any, can be carried out by editing the information before electronic submission on e-procurement portal.

D. Submission of Bids

- 20.1 Bids, both Technical and Financial Parts, shall be submitted online on the e-procurement system specified in **ITB 6.1**. Detailed guidelines for viewing bids and submission of online bids are as per **ITB 6.1** and the website referred therein. A prospective bidder can submit its bid online only for which the bidder (in case of JV, the authorised representative of the JV as per **ITB 19.4**) is required to have enrolment/registration and should have valid Digital Signature Certificate (DSC) as specified in **ITB 6.1** in BDS. The Bidder should go through them carefully and submit its bid, along with the specified documents failing which the bid is liable to be rejected.
- 20.2 The completed Bid comprising of documents indicated in **ITB 10**, should be uploaded on the e-procurement portal along with scanned copies of requisite certificates/ documents as are mentioned in different sections in the bidding document. Further, if so specified in **ITB 11.3**, the Bidders shall ensure submission of hard copy of documents as mentioned therein.
- 20.3 All the uploaded documents are required to be signed digitally by the bidder.
- 20.4 Physical, e-mail, Telex, Cable or Facsimile bids will be rejected as non-responsive.
- 21.1 Bids must be uploaded online, and if so specified in **ITB 11.3**, the hard copy of Specified documents must be delivered at the address mentioned therein, no later than the deadline for submission of Bids i.e. the date and time specified in the **BDS**.
- 21.2 The Employer may, at its discretion, extend the deadline for the submission of Bids by amending the bidding document in accordance with **ITB 7**, in which case all rights and obligations of the Employer and Bidders previously subject to the deadline shall thereafter be subject to the deadline as extended.
- 22.1 The electronic bidding system would not allow any late submission of bids after due date & time as per server time.
- 23.1 Bidders may modify their bids by using the appropriate option for bid modification on e-procurement portal, before the deadline for submission of bids. For this the bidder need not make any additional payment towards the cost of bid document, if applicable. For bid modification and consequential re-submission, the bidder is not required to withdraw his bid submitted earlier. The last modified bid submitted by the bidder within the bid submission time shall be considered as the Bid. For this purpose, modification/withdrawal by other means will not be accepted. In online system of bid submission, the modification and consequential

re-submission of bids is allowed any number of times. A bidder may withdraw his bid by using the appropriate option for bid withdrawal, before the deadline for submission of bids, however, if the bid is withdrawn, re-submission of the bid is allowed only up to the deadline for submission of bids as specified in **ITB 21**.

- 23.2 Bids requested to be withdrawn in accordance with **ITB 23.1** shall not be opened.
- 23.3 No Bid may be withdrawn, substituted, or modified in the interval between the deadline for submission of Bids and the expiration of the period of Bid validity specified by the Bidder on the Letter of Bid (Technical Part), or any extension thereof. This will result in the forfeiture of the Bid Security or be sufficient ground for action by Employer against the bidder under the Bid Securing Declaration, as may be applicable pursuant to **ITB 18**.

E. Public Opening of Technical Parts of Bids

- 24.1 The Employer shall, at the Bid opening, publicly open online the Technical Parts of all Bids, except as in the cases specified in **ITB 22** and **ITB 23.2**, received by the deadline of bid submissions as specified in **ITB 21**, at the date, time and place specified in the **BDS** in the presence of Bidders' designated representatives who choose to attend, and this could also be viewed by the bidders online. The Financial Parts of the bids shall remain unopened in the e-procurement system, until the subsequent public opening, following the evaluation of the Technical Parts of the Bids. Bidder's names, and such other details as the Employer may consider appropriate will be notified by the Employer at the time of bid opening.
- 24.2 Only Technical Parts of Bids that are opened at Bid opening of Technical Parts shall be considered further for evaluation.
- 24.3 At the Bid opening the Employer shall neither discuss the merits of any Bid nor reject any Bid (except the cases, in accordance with **ITB 22** and **ITB 23.2**).
- 24.4 The Employer shall prepare a record of the Bid opening, that shall include, as a minimum:
 - (a) the name of the Bidder; and
 - (b) The presence or absence of a Bid Security or a Bid-Securing Declaration.
- 24.5 The Bidders' representatives who are present shall be requested to sign the record. The omission of a Bidder's signature on the record shall not invalidate the contents and effect of the record. A copy of the record shall be distributed to all Bidders.

F. Evaluation of Bids - General Provisions

- 25.1 Information relating to the evaluation of Bids and recommendation of contract award shall not be disclosed to Bidders, or any other persons not officially concerned with the Bidding process.
- 25.2 Any effort by a Bidder to influence the Employer in the evaluation or contract award decisions may result in the rejection of its Bid.

- 25.3 Notwithstanding **ITB 25.1**, from the time of Bid opening to the time of Contract Award, if any Bidder wishes to contact the Employer on any matter related to the Bidding process, it should do so in writing.
- 26.1 To assist in the examination, evaluation, comparison of the Bids, and eligibility or qualification of the Bidders, the Employer may, at its discretion, ask any Bidder for a clarification of its Bid and/or seek information related to historical data/ documents pertaining to credentials of the Bidders and the Bids that the Employer may require. Any clarification submitted by a Bidder in respect to its Bid and that is not in response to a request by the Employer shall not be considered. The Employer's request for clarification and the response shall be in writing. No change, including any voluntary increase or decrease, in the prices or substance of the Bid shall be sought, offered, or permitted.
- 26.2 If a Bidder does not provide clarifications of its Bid or data/ documents sought, by the date and time set in the Employer's request for clarification/ data/ document, its Bid may be rejected.
- 27.1 During the evaluation of Bids, the following definitions apply:
- (a) "Deviation" is a departure from the requirements specified in the bidding document;
 - (b) "Reservation" is the setting of limiting conditions or withholding from complete acceptance of the requirements specified in the bidding document; and
 - (c) "Omission" is the failure to submit part or all of the information or documentation required in the bidding document.
- 28.1 Provided that a Bid is substantially responsive, the Employer may waive any nonconformity in the Bid, which does not constitute a material deviation, reservation or omission.
- 28.2 Provided that a Bid is substantially responsive, the Employer may request that the Bidder submit the necessary information or documentation, within a reasonable period of time, to rectify nonmaterial nonconformities or omissions in the Bid related to documentation requirements. Requesting information or documentation on such nonconformities and/or omissions shall not be related to any aspect of the price of the Bid. Failure of the Bidder to comply with the request may result in the rejection of its Bid.
- 28.3 Provided that a Bid is substantially responsive, the Employer shall rectify quantifiable nonmaterial nonconformities related to the Bid Price. To this effect, the Bid Price shall be adjusted, for comparison purposes only, to reflect the price of a missing or non-conforming item or component in the manner specified in **BDS**.

G. Evaluation of Technical Parts of Bids

- 29.1 In evaluating the Technical Parts of each Bid, the Employer shall use the requirements, criteria and methodologies mentioned and specified in **Section 2**, **Section 3** and **Section 6**.
- 29.2 The Employer shall, inter-alia, carry out the Technical Evaluation as per **ITB 29.3**, and determine to its satisfaction:
- (a) whether the Bidders comply with the Eligibility Requirements, have offered eligible Plant and Installation Services in their Bids, as specified in **ITB 3** and **Section 2**;
 - (b) Whether the Bidders meet the Qualification Requirement as specified in **ITB 3** and **Section 2**. (The determination shall be based upon an examination of the documentary evidence of the Bidder's qualifications submitted by the Bidder, pursuant to **ITB 16** read in conjunction with **ITB 26**. The determination shall not take into consideration the qualifications of other firms such as the Bidder's subsidiaries, parent entities, affiliates, sub-Contractor/Bidders (other than specialized sub-Contractor/Bidders if permitted in the bidding document), or any other firm different from the Bidder that submitted the Bid except if provided in the specified Qualification Requirement itself.); and
 - (c) Whether the Bids submitted by the Bidders complying with the requirements specified in (a), and (b) above have been determined to be substantially responsive to the RFB/bidding document, as per **ITB 30**.
- 29.3 **Technical Evaluation.** The Employer will carry out a detailed technical evaluation of the Bids not previously rejected to determine whether the technical aspects are in compliance with the bidding document. The Bid that does not meet minimum acceptable standards of completeness, consistency and detail, and the specified minimum (or maximum, as the case may be) requirements for specified functional guarantees, will be rejected for non-responsiveness. In order to reach its determination, the Employer will examine and compare the technical aspects of the Bids on the basis of the information supplied by the Bidders, taking into account the following:
- (a) overall completeness and compliance with the Employer's Requirements; conformity of the Plant and Installation Services offered with specified performance criteria, including conformity with the specified minimum (or maximum, as the case may be) requirement corresponding to each functional guarantee, as indicated in **Section 2** and/ or **Section 6**; suitability of the Plant and Installation Services offered in relation to the environmental and climatic conditions prevailing at the site; and quality, function and operation of any process control concept included in the Bid;
 - (b) type, quantity and long-term availability of mandatory and recommended spare parts and maintenance services; and
 - (c) Other relevant factors, if any, listed in the RFB/ bidding document.
- 29.4 At this stage, a Bid shall be rejected if the determination on any one of the aspects listed in ITB 29.2 (a), (b) and (c) above, is not in the affirmative. All other Bids shall be considered for further evaluation.

- 30.1 The Employer's determination of a Bid's responsiveness is to be based on the contents of the Bid itself, as defined in **ITB 10** read in conjunction with **ITB 26** and submitted as per **ITB 11**.
- 30.2 A substantially responsive Bid is one that meets the requirements of the bidding document without material deviation, reservation, or omission. A material deviation, reservation, or omission is one that:
- (a) If accepted, would:
 - (i) Affect in any substantial way the scope, quality, or performance of the Works specified in the Contract; or
 - (ii) Limit in any substantial way, inconsistent with the bidding document, the Employer's rights or the Bidder's obligations under the Contract; or
 - (b) If rectified, would unfairly affect the competitive position of other Bidders presenting substantially responsive Bids.
- 30.3 The Employer shall examine the technical aspects of the Bids, in particular, to confirm that all requirements of **Section 6**, Employer's Requirement have been met without any material deviation or reservation, or omission.
- 30.4 If a Bid is not substantially responsive to the requirements of bidding document, it shall be rejected by the Employer and may not subsequently be made responsive by correction of the material deviation, reservation, or omission.

H. Public Opening of Financial Parts of Bids

- 31.1 Following the completion of the evaluation of the Technical Parts of the Bids, the Employer shall notify those Bidders whose Bids were considered non-responsive to the bidding document / RFB Document or failed to meet the Eligibility Requirements or Qualification Requirement or any other specified requirement, advising them of the following information:
- (a) The grounds on which their Technical Part of Bid failed to meet the requirements of the bidding document; and
 - (b) Financial Part of their Bid will not be opened.
- 31.2 The Employer shall, simultaneously, notify those Bidders whose Technical Parts have been evaluated as substantially responsive to the bidding document and met the Eligibility Requirement, Qualification Requirement and other specified requirement, advising them of the following information:
- (a) Their Bid has been evaluated as substantially responsive to the requirements of bidding document and the specified requirements;
 - (b) Financial Part of their Bid will be opened online at the public opening of the Financial Parts; and

- 31.3 The opening is in online mode and bidder's get due notification of bid opening and can witness the opening online. The date of opening may be set based on Employer's requirements. The Financial Part of the Bids shall be opened publicly in the presence of Bidders' designated representatives who choose to attend, and this could also be viewed by the bidders online. The bidder's names, the Bid prices, the total amount of each bid, and such other details as the Employer may consider appropriate, will be announced by the Employer at the time of bid opening.
- 31.4 The Employer shall prepare a record of the Bid opening, that shall include, as a minimum:
- (a) the name of the Bidder; and
 - (b) the Bid price, for the package, including any discounts
- 31.5 Only Financial Parts of Bids that are opened at Bid opening shall be considered for further evaluation.

I. Evaluation of Financial Parts of Bids

- 32.1 To evaluate the Financial Part of each Bid, the Employer shall consider the following:
- (a) Bid price, as quoted in accordance with **ITB 13.5**;
 - (b) Price adjustment for correction of arithmetic errors in accordance with **ITB 33**;
 - (c) Price adjustment due to discounts offered in accordance with **ITB 13.9**;
 - (d) Price adjustment due to quantifiable nonmaterial nonconformities in accordance with **ITB 28.3**;
 - (e) GST, quoted separately as per **ITB 13.12**, adjusted for correction of arithmetic errors in accordance with **ITB 33**, shall be considered for arriving at the evaluated Bid cost/ price and comparison of Bids, except if otherwise specified in **BDS**.
 - (f) The additional evaluation factors if specified in **BDS** and/ or **Section 6**.
- 32.2 If price adjustment is allowed in accordance with **ITB 13.6**, the estimated effect of the price adjustment provisions of the Conditions of Contract, applied over the period of execution of the Contract, shall not be taken into account in Bid evaluation.
- 32.3 The Employer's evaluation of a Bid may require the consideration of other factors if specified in **BDS**, in addition to the Bid price quoted, in accordance with **ITB 33.1 (e)**.
- 33.1 There would be a manual recalculation and in the case of discrepancy between the mentioned prices in Financial Bid and manual prices, the manually calculated prices shall prevail.
- 33.2 Any bid which is found to have tampered or modified the logic for calculating the total amount from unit rates and quantities, is liable to be rejected and the case shall be dealt against the

bidder under the Integrity Pact and conditions of the RFB/ bidding documents including those regarding fraud etc.

- 34.1 The Employer shall compare the evaluated price/costs of all substantially responsive Bids, to determine the Bid that has the lowest evaluated cost/ price.
- 35.1 Purchase Preference shall apply for award of contract if so specified in the **BDS**, as per the guidelines, instruction and methodology indicated therein.
- 36.1 An Abnormally Low Bid is one where the Bid price, in combination with other elements of the Bid, appears so low that it raises material concerns with the Employer as to the capability of the Bidder to perform the Contract for the offered Bid Price.
- 36.2 In the event of identification of a potentially Abnormally Low Bid, the Employer, unless otherwise specified in **BDS**, may seek written clarification from the Bidder, including a detailed price analyses of its Bid price in relation to the subject matter of the contract, scope, delivery schedule, allocation of risks and responsibilities and any other requirements of the bidding document.
- 36.3 After evaluation of the price analyses, in the event that the Employer determines that the Bidder has failed to demonstrate its capability to perform the contract for the offered Bid price, the Employer shall reject the Bid.
- 37.1 The Bid that is evaluated as the lowest evaluated cost/price, shall be considered by the Employer as unbalanced or front loaded, if the quoted price of supply portion exceeds the percentage specified in **BDS** of the total quoted **Bid price**, after evaluation and excluding GST. In such a case, the bidder shall be required to furnish an additional performance security pursuant to **ITB 44.1**
- 38.1 Having compared the evaluated cost/price of Bids as per **ITB 34**, and applying the provisions of **ITB 35**, the Employer shall determine the Most Advantageous Bid (alternatively referred to as **L1 Bid**). The Most Advantageous Bid is the Bid of the Bidder (also referred to as the **successful bidder**) who meets the the specified requirements as per **Section 2** and **Section 3**, and whose Bid has been determined to have the lowest evaluated price/cost subject to **ITB 35**.
- 38.2 The capabilities of the manufacturers and subcontractors proposed in its Bid to be used by the Bidder with the Most Advantageous Bid for identified major items of supply or services may also be evaluated for acceptability in accordance with **Section 2 / Section 6**. Their participation should be confirmed with a letter of intent between the parties, as needed. Should a manufacturer or subcontractor be determined to be unacceptable, the Bid will not be rejected, but the Bidder will be required to substitute an acceptable manufacturer or subcontractor without any change to the Bid price. Prior to signing the Contract, the

corresponding **Appendix** to the Contract Agreement shall be completed, listing the approved manufacturers or subcontractors for each item concerned.

- 38.3 **Price Negotiation** - Usually, there shall be no price negotiations. However, in case the Employer identifies exceptional reasons due to which negotiation is required, the Employer reserves its right to negotiate with the lowest acceptable bidder (L-1).

- 39.1 The Employer reserves the right to accept or reject any Bid, and to annul the Bidding process and reject all Bids at any time prior to Contract Award, without thereby incurring any liability to Bidders. In case of annulment, all Bids submitted and specifically, bid securities, if applicable as per **ITB 18** and submitted, shall be promptly returned to the Bidders.

J. Award of Contract

- 40.1 The Employer shall award the Contract to the successful Bidder. This is the Bidder whose Bid has been determined to be the Most Advantageous Bid as specified in **ITB 38**.

- 40.2 The mode of contracting with the successful bidder will be as indicated below:

- 40.2.1 The award shall be made as follows:

- (i) Contract Part I: for Supply of Plant on FOR (final place of destination Site/ Project Site) basis.
- (ii) Contract Part II: for Supply of Installation Services {excluding the incidental services included in (i) above}

- 40.3 Both the parts of the Contract will contain a cross fall breach clause specifying that breach of one will constitute breach of the other.

- 41.1 At the time the Contract is awarded, the Employer reserves the right to invite the Bidder whose Bid is determined to be the Most Advantageous Bid as per **ITB 38**, for discussions if any minor adjustments in the Contract are required, without any substantial change in the terms and conditions of the bidding document.

- 42.1 Prior to the date of expiry of the Bid validity, the Employer shall notify the successful Bidder, in writing, that its Bid has been accepted. The Notification of Award (hereinafter and in the Contract Forms also called the “**Letter of Acceptance**”) shall specify the sum that the Employer will pay the Contractor in consideration of the execution of the Contract (hereinafter and in the Conditions of Contract and Contract Forms called “the Contract Price”).

- 42.2 Until a formal Contract is prepared and executed, the Letter of Acceptance/ Notification of Award shall constitute formation of a binding Contract.

- 43.1 Promptly upon issue of Letter of Acceptance/ Notification of Award, the Employer shall prepare the Contract Agreement, and keep it ready in the office of the Employer for the signature of the Employer and the successful Bidder, within twenty-one (21) days following the date of Letter of Acceptance. The Contract Agreement shall incorporate all agreements including L2 schedule between the Employer and the successful Bidder. L-2 schedule should be submitted, discussed, amended (if so required) within overall L-1 schedule and accepted by owner before signing of contract agreement. Also, CPG should be submitted, verified from issuing bank legally vetted and approved before signing of contract agreement.
- 43.2 Within twenty-one (21) days of receipt of Letter of Acceptance, the successful Bidder shall (a) furnish the performance security in accordance with **ITB Clause 44**; and (b) shall sign, date and return the Agreement to the Employer along with the documents stated at (a) above.
- 44.1 Within twenty-one (21) days of the receipt of the Letter of Acceptance/ Notification of Award from the Employer, the successful Bidder shall furnish the Performance Security & Additional performance security (if applicable), in Indian Rupees, in accordance with the GCC and in the amount, form and details specified in the **BDS**, further subject to **ITB 37**.
- 44.2 Failure of the successful Bidder to submit the above-mentioned Performance Security & Additional performance security (if applicable) or sign the Contract shall constitute sufficient grounds for the annulment of the award and forfeiture of the Bid Security or be sufficient ground for action by the Employer against the bidder under the Bid Securing Declaration, as may be applicable as per **ITB 18**.
- 45.1 The Employer named in the Bidding Documents intends to use the capital subsidy of 40% of cost of the infrastructures in the project from GoM for system strengthening of infrastructure in the states and 60% to be arranged by the State Government/Employer through loans from ADB. However, the payment as per the contract payment terms will be released timely by the Employer, without any linkage to disbursement of the funds.

I. Bid Data Sheet (BDS)

The following specific data for the Plant and Installation Services/ Works to be procured shall complement, supplement, and/or amend the provisions in the Instructions to Bidders (ITB). Whenever there is a conflict, the provisions herein shall prevail over those in ITB.

ITB Reference	A. General
ITB 1.1	The reference number of the Notice Inviting Tenders (NIT/Request for Bids (RFB) is: System Strengthening works at Nagpur Zone of MAHARASHTRA STATE. The Employer is: Chief Engineer (Spl. Projects), MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED The name and identification of the package under this RFB is System Strengthening works at Nagpur Zone of MAHARASHTRA STATE. Tender No: : CE-SPD/ADB/2026-27/ T-13
ITB 1.2 (c)	Mahavitaran or Mahadiscom or MSEDCL (Maharashtra State Electricity Distribution Company Limited) is a wholly-owned <u>subsidiary</u> of the <u>Maharashtra State Electricity Board</u>. It is the largest electricity distribution utility in India (2nd largest in the World after <u>SGCC</u> in terms of consumers]. MSEDCL distributes electricity to the entire state of Maharashtra except for some parts of <u>Mumbai</u> city
ITB 1.2 (m)	Bidding/ Bids by/ from Joint Venture (JV) is “permitted”. In case Bidding/ Bids by/ from Joint Venture is permitted, the number of members/ partners of the JV shall not exceed 03 (three)
	B. Contents of Bidding Document
ITB 6.1	Bidding against RFB shall be conducted through/ with Electronic – Procurement (e- Procurement/ e- Tendering) System. Employer shall use the following URL to manage this Request for Proposal (RFP) process: https://etender.mahadiscom.in/eatApp/ The electronic-tendering system shall be used to manage the following part of the bidding process under the RFB:

	Issuing RFB/ Bidding document, amendments/ corrigendum/ addendums/ clarifications, etc., submissions of bids, opening of Bids, etc. To aid and facilitate the Bidders on e-Procurement/ e-Tendering process a detailed manual on the same titled Bidder Help Manual for e-Bidding has been provided on Employer's E-tender Portal. The same may be utilized by the Bidders.
ITB 6.2	A Bidder requiring any clarification of the bidding document may notify the Employer online through the electronic bidding system if provisioned/ permitted or through e-mail at the following e-mail address: cespd.msedcl@gmail.com Requests for clarification should be received by the Employer no later than: 7 days from date of issue of NIT.
ITB 6.5	A Pre-Bid meeting shall take place at the following date, time and place: Date: 26/05/2026 Time: 15:00 Hrs Place: Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai – 400051
ITB 7.1	The addendum/corrigendum/ amendment will appear on the e-procurement system specified in ITB 6.1 and email notification is also automatically sent through the system to those bidders who have started working on this procurement.
	C. Preparation of Bids
ITB 10.2.8	The Bidder shall submit the following additional documents in Technical Part of its Bid: (i) Integrity Pact, prepared using the relevant form furnished in Section 4 - Bidding Forms - Technical Part of the Bid; (ii) Self-certified copy of the document to establish legal status of the firm viz. Certificate of Incorporation issued under The Companies Act / The Limited Liability Partnership Act / Partnership deed etc. as applicable; (iii) Self-certified copy of PAN; (iv) Self-certified copy of GST Registration; (v) Self-certified copy in support of MSME, if applicable.
ITB 10.3.3	The Bidder shall submit the following additional documents in its Financial Part of its Bid : list any additional document not already listed in ITB 11.3

	that must be submitted with the Financial Part of the Bid, otherwise delete this row>
ITB 11	Note for Bidders: Bidders have to submit the bids on the e-tendering portal along with the relevant required documents. For this purpose, the bidders shall download the tender document & fill up the forms that are available in the tender document on the e-portal. The filled up pages shall then be scanned and uploaded on the e- tendering portal along with the scanned copies of the supporting documents. The bid shall be digitally signed.
ITB 11.3	The bidders are not required to submit hard copy of any of the documents in original along-with the Bid unless and otherwise demanded by the Employer. The Bid Security in the form of Security Deposit or Electronic Bank Guarantee to be submitted at following address: Attention: Chief Engineer (Spl. Projects) Street Address: Anant Kanekar Marg Floor/ Room number: 5th floor City: Bandra (East), Mumbai PIN/Postal Code: 400051 Country: INDIA
ITB 13.1	To be treated as deleted..... [The following components/ parts of the Plant and Installation Services will be provided under the responsibility of the Employer: _____]
ITB 13.5.1(i), ITB 13.5.2 (i)	Final Destination (Site/ Project Site) is: System Strengthening works of Nagpur Zone OF MAHARASHTRA
ITB 13.6	The prices quoted by the Bidder shall be subject to adjustment during the performance of the Contract. The adjustment of contract price, if provided, will be done in accordance with Appendix to Contract Form.
ITB 13.11	GST applicable in India, on the Plant and Installation Services provided/ supplied by the Contractor to the Employer under the Contract shall be paid/ reimbursed by Employer against requisite documents, at actuals.
ITB 17.1	The Bid shall remain valid until i.e. upto and including 180 days reckoned from the deadline for Submission of Bids specified in ITB 21.1, as may be extended by the Employer from time to time in accordance therewith.

ITB 18.1	<i>As a Bid Security shall be required, a Bid-Securing Declaration shall not be required.</i> The amount of the Bid Security shall be equal to 2% of tender value or Rs 5 (five) crore, whichever is lower
ITB 18.2 (c)	The Bid securities will be accepted only in the form of Electronic Bank Guarantee (eBG) issued by a Nationalized/Schedule Commercial Bank located in India with payable at Mumbai.
ITB 18.8	If the Bidder performs any of the actions prescribed in ITB 18.8 (a) or (b), the Employer will declare the Bidder ineligible to be awarded a contract by the Employer for a period as per MSEDCL debar & black listing policy
ITB 19.3	The written confirmation of authorization to sign on behalf of the Bidder shall consist of [..... Legally valid Power of Attorney demonstrating the authority of the signatory to sign the Bid.....]
	D. Submission of Bids
ITB 21.1	The Deadline for Submission of Bids by uploading on e- Procurement system specified in ITB 6.1 and ITB 11 including submission of original documents in hard copy if any specified in ITB 11.3, is: Date: 09/06/2026 Time: 15:00 Hrs (3:00 PM)
	E. Public Opening of Technical Parts of Bids
ITB 24.1	The online opening of Technical Part of Bids, shall take place at Office of the Chief Engineer (Spl. Projects) Street Address: Anant Kanekar Marg Floor/ Room number: 5th floor City: Bandra (East), Mumbai PIN/Postal Code: 400051 Country: India Date: 09/06/2026 Time: 16:00Hrs (5:00 PM) In the event of the specified date of bid opening being declared a holiday for the Employer, the bids will be opened at the appointed time and location on the next working day.
	F. Evaluation of Bids - General Provisions

ITB 28.3	The adjustment shall be based on the _____ [insert “average” or “highest”] price of the item or component as quoted in other substantially responsive Bids. If the price of the item or component cannot be derived from the price of other substantially responsive Bids, the Employer shall use its best estimate.
I. Evaluation of Financial Part of Bids	
ITB 32.1 (e)	[GST, quoted separately as per ITB 13.12 , shall be considered for arriving at the evaluated Bid cost/ price and comparison of Bids.]
ITB 32.1(f)	The Employer’s evaluation of a Bid shall also require the consideration of factors listed herein below. Wherever specified, the adjustments shall be determined using the criteria and methodology mentioned in Section 6. Employer’s Requirement (a) Time for Completion: The Plant and Installation Services specified in Employer’s Requirement are required to be supplied / provided within the specified Time for Completion. No credit will be given if provided/ supplied before the specified date or period, and Bids offering supply/ completion after the final date/ specified period shall be treated as nonresponsive; (b) Deviation in payment schedule/ terms and conditions of payment: Bidders shall state their Bid price for the payment schedule outlined in the Conditions of Contract. Bids shall be evaluated on the basis of this base price. If a Bid deviates from the specified payment schedule/ terms and conditions of payment, it shall be treated as non-responsive; (c) Life cycle costs: the projected operating and maintenance costs during the life of the Plant, goods or equipment (d) Functional Guarantees of the Facilities (Material & workman ship) -- Yes (Major material – 5 years from date of commission & Minor Materials – 2 years from date of commission (e) Cost of withdrawal of deviations: Deviations will not be allowed (as per Attachment 6 in Section 4)
ITB 35.1	The contract against this NIT shall be non-divisible contract. Purchase Preference shall apply for award of the said non-divisible contract, as per the orders/ guidelines/ instructions of the Government issued from time to time, and in accordance with the provisions annexed to the Bid Data Sheet as Annexure 2 (BDS).
ITB 36	Provisions related to Abnormally Low Bids are applicable for the rates beyond (-) 10%
ITB 37	Not applicable

	J. Award of Contract
ITB 44.1	The Performance Security amount is 3% of Contract Price The Standard Form of Performance Security acceptable to the Employer shall be as specified in Section 8. Contract Forms. Performance Security shall be in the form of e-BG only.

Annexure I (BDS)**Bidder Help Manual for E-Bidding**

< Available on MSEDCL web site www.mahadiscom.in/etender >

Section - 4 : Bidding Forms - Technical Part of the Bid

Form 1

Letter of Bid – Technical Part

The Bidder must prepare the Letter of Bid on stationery with its letterhead clearly showing the Bidder's complete name and business address.

Note: All italicized text in black font is to help Bidders in preparing this form and Bidders shall delete it from the final document.

Date of this Bid submission:

NIT/RFB No.:

Title of Procurement/ Contract:

To: [Name of Purchaser.....]

We, the undersigned Bidder, hereby submit our Bid, in two parts, namely:

- (a) the Technical Part, and
- (b) the Financial Part.

1.0 In submitting our Bid we make the following declarations:

- (a) **No reservations:** We have examined and have no reservations to the bidding document (ITB5), including addenda issued in accordance with Instructions to Bidders (ITB 7);
- (b) **Eligibility:** We meet the eligibility requirements and have no conflict of interest in accordance with ITB 3 and Section 3;
- (c) **Bid/Proposal-Securing Declaration:** We have not been suspended nor declared ineligible by the Purchaser based on execution of a Bid Securing Declaration by the Purchaser in accordance with ITB 3.7;
- (d) **Conformity:** We offer to supply in conformity with the bidding document and in accordance with the Delivery Schedules specified in the Schedule of Requirements the all the Goods and Related Services as per the scope mentioned in Section VI
- (e) **Bid Validity Period:** Our Bid shall be valid for the period specified in BDS 17.1 (as amended if applicable) from the date fixed for the deadline for submission of Bids (specified in BDS 21.1 (as amended if applicable), and it shall remain binding upon us and may be accepted at any time before the expiration of that period;
- (f) **Performance Security:** If our Bid is accepted, we commit to obtain a performance security in accordance with the bidding document;